

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, May 29, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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19CV-01019	Producers Livestock Marketing Association vs Gustavo Del Toro
	Order of Examination (Non Appeal)

Appearance required.

24CV-03458	Paul Horta vs Whitton Family Funeral Service
	Motion for New Trial

The motion for a new trial is DENIED.

After a thorough review of the record the court finds there was no irregularity in the proceedings, there was no error in law, Defendant's motion for summary judgment was not procedurally defective, and the evidence was sufficient to support granting the motion for summary judgment.

The evidence supports the finding that the revocation by Mr. Juarez was valid, there was no requirement by Defendant to notify Plaintiff that Mr. Juarez had revoked the

relinquishment of rights, and there was no contract between Plaintiff and Defendant. In short, Defendant owed no duty to Plaintiff.

Accordingly, the motion for new trial is denied.

Motion to Set Aside and Vacate Judgment and Enter a Different Judgment

The motion to set aside and vacate judgment and enter a different judgment is DENIED.

After a thorough review of the record the court finds its judgment does not rest on erroneous legal premises, Defendant's motion for summary judgment was not procedurally defective, and the evidence was sufficient to support granting the motion for summary judgment.

The evidence supports the finding that the revocation by Mr. Juarez was valid, there was no requirement by Defendant to notify Plaintiff that Mr. Juarez had revoked the relinquishment of rights, and there was no contract between Plaintiff and Defendant. In short, Defendant owed no duty to Plaintiff.

Accordingly, motion to set aside and vacate judgment and enter a different judgment is denied.

25CV-00873

Shauna Zaas, et al. vs General Motors, LLC. et al.

Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred

Plaintiff's motion for attorney's fees is GRANTED.

Attorney's fees are awarded in the amount of \$10,707.50.

Costs are awarded in the amount of \$2,611.16.

Plaintiff seeks to set the lodestar at \$20,220, inclusive of attorney's fees to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion. Plaintiff also seeks costs in the amount of \$2,858.66.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff's counsel claims hourly rates ranging from \$595 to \$450 for attorneys and \$250 for law clerk work. To support these rates, Plaintiff cites to the United States Attorney Fee Survey 2017-2018, and the Laffey Matrix. The Court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Rather, the Court sets the hourly rate of counsel at \$350 / hour and the law clerk rate at \$125 / hour.